

(37)

Tentative Ruling

Re: **Trevino v. Martinez**
Superior Court Case No. 23CECG05148

Hearing Date: September 15, 2026 (Dept. 403)

Motion: By Plaintiff to Modify the Interlocutory Judgment

Tentative Ruling:

To grant. The court intends to sign the proposed modified interlocutory judgment filed July 17, 2026.

Explanation:

Code of Civil Procedure 872.140 articulates that the court may make compensatory adjustments based on equity. Correcting the confirmed interests to reflect the recorded chain of title is an appropriate adjustment for the court to make here. As such, the court intends to sign the proposed modified interlocutory judgment reflecting adjusted interests in the property at issue in this action.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC on September 14, 2026.
(Judge's initials) (Date)

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Tentative Ruling

Re: ***Gardenhire v. Wroten et al.***
Superior Court Case No. 20CECG00580

Hearing Date: September 15, 2026 (Dept. 403)

Motion: By Plaintiffs for Reconsideration – Set Aside Dismissal

Tentative Ruling:

To deny. (Code Civ. Proc., § 473, subd. (b).)

Explanation:

The title of the motion may not be determinative of what the motion is actually requesting. A trial court may construe a motion bearing one label as a different type of motion. This is consistent with the court's inherent authority to manage and control its docket. (*Sole Energy Co. v. Petrominerals Corp.* (2005) 128 Cal.App.4th 187, 192-193; see also *Pierson v. Sharp Memorial Hosp.* (1989) 216 Cal.App.3d 340, 342-343.)

Here, the motion filed on behalf of plaintiffs Geraldine Gardenhire and Loretta Rehbein (collectively "Plaintiffs") was not a motion for reconsideration based on "new facts [or] circumstances," but to request that the dismissal ordered on April 29, 2026 be set aside based on counsel's affidavit of fault. (Code Civ. Proc., §§ 1008, subd. (a), 473, subd. (b).)

The application for relief under section 473, subdivision (b), and notice to the adverse party, must be made within a reasonable time, not exceeding six months from the court's order to dismiss. (Code Civ. Proc. § 473, subd. (b); *Arambula v. Union Carbide Corp.* (2005) 128 Cal.App.4th 333, 341.) Notice to an adverse party who has not appeared in the action is also required, as the order to set aside dismissal may affect the rights of the adverse party. (*McDonald v. Severy* (1936) 6 Cal.2d 629, 631.)

While Plaintiffs' application to set aside dismissal was filed within six months of the order to dismiss, a proof of service showing that defendants Cathy Wroten and Steve Wroten were noticed of the instant application was not filed. While defendants have not appeared in the action, notice of an application to set aside dismissal is required because the requested order would affect their rights. Thus, Plaintiffs' application to set aside dismissal must be denied.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

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